



ANNO TERTIO & QUARTO

GULIELMI IV. REGIS.

C A P. LXXIII.

An Act for the Abolition of Slavery throughout the
British Colonies ; for promoting the Industry of
the manumitted Slaves ; and for compensating
the Persons hitherto entitled to the Services of
such Slaves. [28th *August* 1833.]

WHEREAS divers Persons are holden in Slavery within
divers of His Majesty's Colonies, and it is just and expe-
dient that all such Persons should be manumitted and
set free, and that a reasonable Compensation should be made to the
Persons hitherto entitled to the Services of such Slaves for the Loss
which they will incur by being deprived of their Right to such
Services : And whereas it is also expedient that Provision should be
made for promoting the Industry and securing the good Conduct of
the Persons so to be manumitted, for a limited Period after such
their Manumission : And whereas it is necessary that the Laws now
in force in the said several Colonies should forthwith be adapted to
the new State and Relations of Society therein which will follow
upon such general Manumission as aforesaid of the said Slaves ; and
that, in order to afford the necessary Time for such Adaptation of
the said Laws, a short Interval should elapse before such Manumis-
sion should take effect : Be it therefore enacted by the King's most
Excellent Majesty, by and with the Advice and Consent of the
Lords Spiritual and Temporal, and Commons, in this present Parlia-
ment assembled, and by the Authority of the same, That from and
after the First Day of *August* One thousand eight hundred and thirty-
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All Persons
who on the
1st August
1834 shall
four

have been registered as Slaves, and shall appear on the Registry to be Six Years old or upwards, shall from that Day become apprenticed Labourers.

four all Persons who in conformity with the Laws now in force in the said Colonies respectively shall on or before the First Day of *August* One thousand eight hundred and thirty-four have been duly registered as Slaves in any such Colony, and who on the said First Day of *August* One thousand eight hundred and thirty-four shall be actually within any such Colony, and who shall by such Registries appear to be on the said First Day of *August* One thousand eight hundred and thirty-four of the full Age of Six Years or upwards, shall by force and virtue of this Act, and without the previous Execution of any Indenture of Apprenticeship, or other Deed or Instrument for that Purpose, become and be apprenticed Labourers ; provided that, for the Purposes aforesaid, every Slave engaged in his ordinary Occupation on the Seas shall be deemed and taken to be within the Colony to which such Slave shall belong.

Who entitled to Services of the Slave as an apprenticed Labourer.

II. And be it further enacted, That during the Continuance of the Apprenticeship of any such apprenticed Labourer such Person or Persons shall be entitled to the Services of such apprenticed Labourer as would for the Time being have been entitled to his or her Services as a Slave if this Act had not been made.

All Slaves brought into the United Kingdom with Consent of Possessors, free.

III. Provided also, and be it further enacted, That all Slaves who may at any Time previous to the passing of this Act have been brought with the Consent of their Possessors, and all apprenticed Labourers who may hereafter with the like Consent be brought, into any Part of the United Kingdom of *Great Britain* and *Ireland*, shall from and after the passing of this Act be absolutely and entirely free to all Intents and Purposes whatsoever.

Apprenticed Labourers to be divided into Three Classes, viz. prædial attached, prædial unattached, and non-prædial.

IV. And whereas it is expedient that all such apprenticed Labourers should, for the Purposes herein-after mentioned, be divided into Three distinct Classes, the First of such Classes consisting of prædial apprenticed Labourers attached to the Soil, and comprising all Persons who in their State of Slavery were usually employed in Agriculture, or in the Manufacture of Colonial Produce or otherwise, upon Lands belonging to their Owners ; the Second of such Classes consisting of prædial apprenticed Labourers not attached to the Soil, and comprising all Persons who in their State of Slavery were usually employed in Agriculture, or in the Manufacture of Colonial Produce or otherwise, upon Lands not belonging to their Owners ; and the Third of such Classes consisting of non-prædial apprenticed Labourers, and comprising all apprenticed Labourers not included within either of the Two preceding Classes : Be it therefore enacted, That such Division as aforesaid of the said apprenticed Labourers into such Classes as aforesaid shall be carried into effect in such Manner and Form and subject to such Rules and Regulations as shall for that Purpose be established under such Authority, and in and by such Acts of Assembly, Ordinances, or Orders in Council, as herein after mentioned : Provided always, that no Person of the Age of Twelve Years and upwards shall by or by virtue of any such Act of Assembly, Ordinance, or Order in Council be included in either of the said Two Classes of prædial apprenticed Labourers unless such

Proviso.

Person shall for Twelve Calendar Months at the least next before the passing of this present Act have been habitually employed in Agriculture or in the Manufacture of Colonial Produce.

V. And be it further enacted, That no Person who by virtue of this Act, or of any such Act of Assembly, Ordinance, or Order in Council as aforesaid, shall become a prædial apprenticed Labourer, whether attached or not attached to the Soil, shall continue in such Apprenticeship beyond the First Day of *August* One thousand eight hundred and forty; and that during such his or her Apprenticeship no such prædial apprenticed Labourer, whether attached or not attached to the Soil, shall be bound or liable, by virtue of such Apprenticeship, to perform any Labour in the Service of his or her Employer or Employers for more than Forty-five Hours in the whole in any One Week.

Apprenticeship of the prædial Labourers not to continue beyond 1st August 1840;

VI. And be it further enacted, That no Person who by virtue of this Act or of any such Act of Assembly, Ordinance, or Order in Council as aforesaid, shall become a non-prædial apprenticed Labourer, shall continue in such Apprenticeship beyond the First Day of *August* One thousand eight hundred and thirty-eight.

of the non-prædial Labourers not beyond 1st August 1838.

VII. And be it further enacted, That if before any such Apprenticeship shall have expired the Person or Persons entitled for and during the Remainder of any such Term to the Services of such apprenticed Labourer shall be desirous to discharge him or her from such Apprenticeship, it shall be lawful for such Person or Persons so to do by any Deed or Instrument to be by him, her, or them for that Purpose made and executed; which Deed or Instrument shall be in such Form, and shall be executed and recorded in such Manner and with such Solemnities, as shall for that Purpose be prescribed under such Authority, and in and by such Acts of Assembly, Ordinances, or Orders in Council, as herein-after mentioned: Provided nevertheless, that if any Person so discharged from any such Apprenticeship by any such voluntary Act as aforesaid shall at that Time be of the Age of Fifty Years or upwards, or shall be then labouring under any such Disease or mental or bodily Infirmary as may render him or her incapable of earning his or her Subsistence, then and in every such Case the Person or Persons so discharging any such apprenticed Labourer as aforesaid shall continue and be liable to provide for the Support and Maintenance of such apprenticed Labourer during the remaining Term of such original Apprenticeship, as fully as if such apprenticed Labourer had not been discharged therefrom.

Before the Apprenticeship is expired, the Labourer may be discharged by the voluntary Act of his Employer.

In case of the voluntary Discharge of aged or infirm apprenticed Labourers, the Employer to continue liable for their Support.

VIII. And be it further enacted, That it shall be lawful for any such apprenticed Labourer to purchase his or her Discharge from such Apprenticeship, even without the Consent, or in opposition, if necessary, to the Will of the Person or Persons entitled to his or her Services, upon Payment to such Person or Persons of the appraised Value of such Services; which Appraisalment shall be effected, and which Purchase Money shall be paid and applied, and which Discharge shall be given and executed, in such Manner and Form, and upon, under, and subject to such Conditions, as shall be prescribed

Apprenticed Labourer may purchase his Discharge against the Will of his Employer, on an Appraisalment. How Appraisalment and involun-

tary Dis-
charge to be
effected.

scribed under such Authority, and by such Acts of Assembly, Ordinances, or Orders in Council, as are herein-after mentioned.

Apprenticed
Labourers
not remov-
able from the
Colony.

Prædial
apprenticed
Labourers
not remov-
able from the
Plantation
except by
Consent of
Two Special
Justices.

Consent not
to be given
till the
Justices have
ascertained
that the Re-
moval will
not separate
the Members
of Families.
How Consent
to be given
and recorded.

IX. And be it further enacted, That no apprenticed Labourer shall be subject or liable to be removed from the Colony to which he or she may belong; and that no prædial apprenticed Labourer who may in Manner aforesaid become attached to the Soil shall be subject or liable to perform any Labour in the Service of his or her Employer or Employers except upon or in or about the Works and Business of the Plantations or Estates to which such prædial apprenticed Labourer shall have been attached or on which he or she shall have been usually employed on or previously to the said First Day of *August* One thousand eight hundred and thirty-four: Provided nevertheless, that, with the Consent in Writing of any Two or more Justices of the Peace holding such Special Commission as herein-after mentioned, it shall be lawful for the Person or Persons entitled to the Services of any such attached prædial apprenticed Labourer or Labourers to transfer his or their Services to any other Estate or Plantation within the same Colony to such Person or Persons belonging; which written Consent shall in no Case be given, or be of any Validity, unless any such Justices of the Peace shall first have ascertained that such Transfer would not have the Effect of separating any such attached prædial apprenticed Labourer from his or her Wife or Husband, Parent or Child, or from any Person or Persons reputed to bear any such Relation to him or her, and that such Transfer would not probably be injurious to the Health or Welfare of such attached prædial apprenticed Labourer; and such written Consent to any such Removal shall be expressed in such Terms, and shall be in each Case given, attested, and recorded in such Manner, as shall for that Purpose be prescribed under such Authority, and by such Acts of Assembly, Ordinances, and Orders in Council, as herein-after mentioned.

Right to the
Services of
apprenticed
Labourers
to be trans-
ferable Pro-
perty,

Labourer not
to be sepa-
rated from
Wife, &c.

X. And be it further enacted and declared, That the Right or Interest of any Employer or Employers to and in the Services of any such apprenticed Labourers as aforesaid shall pass and be transferable by Bargain and Sale, Contract, Deed, Conveyance, Will, or Descent, according to such Rules and in such Manner as shall for that Purpose be provided by any such Acts of Assembly, Ordinances, or Orders in Council as herein-after mentioned; provided that no such apprenticed Labourer shall, by virtue of any such Bargain and Sale, Contract, Deed, Conveyance, Will, or Descent, be subject or liable to be separated from his or her Wife or Husband, Parent or Child, or from any Person or Persons reputed to bear any such Relation to him or her.

Employer to
supply the
Labourer
with such
Food, &c. as
the Law at
present re-
quires in
case of Slaves.

XI. And be it further enacted, That during the Continuance of any such Apprenticeship as aforesaid the Person or Persons for the Time being entitled to the Services of every such apprenticed Labourer shall be and is and are hereby required to supply him or her with such Food, Clothing, Lodging, Medicine, Medical Attendance, and such other Maintenance and Allowances as by any Law now in force in the Colony to which such apprenticed Labourer may belong

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an Owner is required to supply to and for any Slave being of the same Age and Sex as such apprenticed Labourer shall be ; and in Cases in which the Food of any such prædial apprenticed Labourer shall be supplied, not by the Delivery to him or her of Provisions, but by the Cultivation by such prædial apprenticed Labourer of Ground set apart for the Growth of Provisions, the Person or Persons entitled to his or her Services shall and is or are hereby required to provide such prædial apprenticed Labourer with Ground adequate, both in Quantity and Quality, for his or her Support, and within a reasonable Distance of his or her usual Place of Abode, and to allow to such prædial apprenticed Labourer, from and out of the annual Time during which he or she may be required to labour, after the Rate of Forty-five Hours *per* Week as aforesaid, in the Service of such his or her Employer or Employers, such a Portion of Time as shall be adequate for the proper Cultivation of such Ground, and for the raising and securing the Crops thereon grown ; the actual Extent of which Ground, and the Distance thereof from the Place of Residence of the prædial apprenticed Labourer for whose Use it may be so allotted, and the Length of Time to be deducted for the Cultivation of the said Ground from the said annual Time, shall and may, in each of the Colonies aforesaid, be regulated under such Authorities, and by such Acts of Assembly, Ordinances, or Orders in Council as herein-after mentioned.

Where the prædial Labourer shall be maintained by the Cultivation of Provision Grounds, a proper Quantity of Ground with leisure Time to be set apart by the Employer.

How the Extent and Locality of the Provision Grounds and the Quantity of Time are to be regulated.

XII. And be it further enacted, That, subject to the Obligations imposed by this Act, or to be imposed by any such Act of General Assembly, Ordinance, or Order in Council as herein-after mentioned, upon such apprenticed Labourers as aforesaid, all and every the Persons who on the said First Day of *August* One thousand eight hundred and thirty-four shall be holden in Slavery within any such *British* Colony as aforesaid shall upon and from and after the said First Day of *August* One thousand eight hundred and thirty-four become and be to all Intents and Purposes free and discharged of and from all Manner of Slavery, and shall be absolutely and for ever manumitted ; and that the Children thereafter to be born to any such Persons, and the Offspring of such Children, shall in like Manner be free from their Birth ; and that from and after the said First Day of *August* One thousand eight hundred and thirty-four Slavery shall be and is hereby utterly and for ever abolished and declared unlawful throughout the *British* Colonies, Plantations, and Possessions Abroad.

Subject to the Obligations imposed hereby, all Slaves in the *British* Colonies emancipated from the 1st *August* 1834; from which Time Slavery shall be abolished throughout the *British* Dominions.

XIII. And whereas it may happen that Children who have not attained the Age of Six Years on the said First Day of *August* One thousand eight hundred and thirty-four, or that Children who after that Day may be born to any Female apprenticed Labourers, may not be properly supported by their Parents, and that no other Person may be disposed voluntarily to undertake the Support of such Children ; and it is necessary that Provision should be made for the Maintenance of such Children in any such Contingency ; be it therefore enacted, That if any Child who on the said First Day of *August* One thousand eight hundred and thirty-four had not completed his or her Sixth Year, or if any Child to which any

Children below the Age of Six on 1st *August* 1834, or born after that Time to any Female Apprentice, if destitute, may be bound out by any Special Magistrate

as an Apprentice to the Person entitled to the Services of the Mother; but at the Date of such Indentures the Apprenticeship must be under Twelve Years of Age.

Indentures to continue in force until the Child has completed his or her Twenty-first Year and no longer.

His Majesty, or any Governor by His Authority, may appoint Justices of the Peace by Special Commission to give effect to this Act and to all Colonial Laws to be made in pursuance of this Act; and no other Qualification necessary.

Female apprenticed Labourer may give birth on or after the said First Day of *August* One thousand eight hundred and thirty-four, shall be brought before any Justice of the Peace holding any such Special Commission as herein-after mentioned, and if it shall be made to appear to the Satisfaction of such Justice that any such Child is unprovided with an adequate Maintenance, and that such Child hath not completed his or her Age of Twelve Years, it shall be lawful for such Justice, and he is hereby required, on behalf of any such Child, to execute an Indenture of Apprenticeship, thereby binding such Child as an apprenticed Labourer to the Person or Persons entitled to the Services of the Mother of such Child, or who had been last entitled to the Services of such Mother; but in case it shall be made to appear to any such Justice that such Person or Persons aforesaid is or are unable or unfit to enter into such Indenture, and properly to perform the Conditions thereof, then it shall be lawful for such Justice and he is hereby required by such Indenture to bind any such Child to any other Person or Persons to be by him for that Purpose approved, and who may be willing and able properly to perform such Conditions; and it shall by every such Indenture of Apprenticeship be declared whether such Child shall thenceforward belong to the Class of attached prædial apprenticed Labourers, or to the Class of unattached prædial apprenticed Labourers, or to the Class of non-prædial apprenticed Labourers; and the Term of such Apprenticeship of any such Child shall by such Indenture be limited and made to continue in force until such Child shall have completed his or her Twenty-first Year, and no longer; and every Child so apprenticed as aforesaid by the Order of any such Justice of the Peace as aforesaid shall during his or her Apprenticeship be subject to all such and the same Rules and Regulations respecting the Work or Labour to be by them done or performed, and respecting the Food and other Supplies to be to him or her furnished, as any other such apprenticed Labourers as aforesaid: Provided always, that the said Indenture of Apprenticeship shall contain sufficient Words of Obligation upon the Employer to allow reasonable Time and Opportunity for the Education and Religious Instruction of such Child.

XIV. And for ensuring the effectual Superintendence of the said apprenticed Labourers, and the Execution of this Act, be it enacted, That it shall and may be lawful for His Majesty to issue, or to authorize the Governor of any such Colony as aforesaid, in the Name and on the Behalf of His Majesty, to issue under the Public Seal of any such Colony, One or more Special Commission or Commissions to any One or more Person or Persons, constituting him or them a Justice or Justices of the Peace for the whole of any such Colony, or for any Parish, Precinct, Quarter, or other District within the same, for the special Purpose of giving effect to this present Act, and to any Laws which may, in manner herein-after mentioned, be made for giving more complete Effect to the same; and every Person to or in favour of whom any such Commission may be issued shall by force and virtue thereof, and without any other Qualification, be entitled and competent to act as a Justice of the Peace within the Limits prescribed by such his Commission for such special

special Purposes aforesaid, but for no other Purposes: Provided nevertheless, that nothing herein contained shall prevent or be construed to prevent any Person commissioned as a Justice of the Peace for such special Purpose as aforesaid from being included in the General Commission of the Peace for any such Colony, or for any Parish, Precinct, Quarter, or other District thereof, in case it shall seem fit to His Majesty, or to the Governor of any such Colony acting by His Majesty's Authority, to address both such Special Commission and such General Commission as aforesaid in any Case to the same Person or Persons.

Such Justices may also be included in the General Commission of the Peace.

XV. And be it further enacted, That His Majesty shall be and he is hereby authorized to grant to any Person or Persons, not exceeding One hundred in the whole, holding any such Special Commission or Commissions as aforesaid, and so from Time to Time as Vacancies may occur, Salaries at and after a Rate not exceeding in any Case the Sum of Three hundred Pounds Sterling *per Annum*, which Salary shall be payable so long only as any such Justice of the Peace shall retain any such Special Commission, and shall be actually resident in such Colony, and engaged in the Discharge of the Duties of such his Office; provided that no Person receiving or entitled to receive any Half Pay, Pension, or Allowance for or in respect of any past Services in His Majesty's Naval or Land Forces shall, by the Acceptance of any such Special Commission or Salary as aforesaid, forfeit or become incapable of receiving or lose his Right to receive such Half Pay, Pension, or Allowance, or any Part thereof, any Law, Statute, or Usage to the contrary in anywise notwithstanding: Provided also, that there be annually laid before both Houses of Parliament a List of the Names of all Persons to whom any such Salary shall be so granted, specifying the Date of every such Commission, and the Amount of the Salary assigned to every such Justice of the Peace.

His Majesty may grant Salaries to Special Justices:

Lists of such Persons to be laid before Parliament.

XVI. And whereas it is necessary that various Rules and Regulations should be framed and established for ascertaining, with reference to each apprenticed Labourer within the said Colonies respectively, whether he or she belongs to the Class of attached prædial apprenticed Labourers, or to the Class of unattached apprenticed Labourers, or to the Class of non-prædial apprenticed Labourers, and for determining the Manner and Form in which and the Solemnities with which the voluntary Discharge of any apprenticed Labourer from such his or her Apprenticeship may be effected, and for prescribing the Form and Manner in which and the Solemnities with which the Purchase by any such apprenticed Labourer or his or her Discharge from such Apprenticeship without, or in opposition, if necessary, to, the Consent of the Person or Persons entitled to his or her Services, shall be effected, and how the necessary Appraisement of the future Value of such Services shall be made, and how and to whom the Amount of such Appraisement shall in each Case be paid and applied, and in what Manner and Form and by whom the Discharge from any such Apprenticeship shall thereupon be given, executed, and recorded; and it is also necessary, for the Preservation of Peace throughout the said Colonies,

Recital of various Regulations necessary for giving Effect to this Act.

Colonies, that proper Regulations should be framed and established for the Maintenance of Order and good Discipline amongst the said apprenticed Labourers, and for ensuring the punctual Discharge of the Services due by them to their respective Employers, and for the Prevention and Punishment of Indolence, or the Neglect or improper Performance of Work by any such apprenticed Labourer, and for enforcing the due Performance by any such apprenticed Labourer of any Contract into which he or she may voluntarily enter for any hired Service during the Time in which he or she may not be bound to labour for his or her Employer, and for the Prevention and Punishment of Insolence and Insubordination on the Part of any such apprenticed Labourers towards their Employers, and for the Prevention or Punishment of Vagrancy or of any Conduct on the Part of any such apprenticed Labourers injuring or tending to the Injury of the Property of any such Employer, and for the Suppression and Punishment of any Riot or combined Resistance of the Laws on the Part of any such apprenticed Labourers, and for preventing the Escape of any such apprenticed Labourers, during their Term of Apprenticeship, from the Colonies to which they may respectively belong: And whereas it will also be necessary for the Protection of such apprenticed Labourers as aforesaid that various Regulations should be framed and established in the said respective Colonies for securing Punctuality and Method in the Supply to them of such Food, Clothing, Lodging, Medicines, Medical Attendance, and such other Maintenance and Allowances as they are herein-before declared entitled to receive, and for regulating the Amount and Quality of all such Articles in Cases where the Laws at present existing in any such Colony may not in the Case of Slaves have made any Regulation or any adequate Regulation for that Purpose; and it is also necessary that proper Rules should be established for the Prevention and Punishment of any Frauds which might be practised, or of any Omissions or Neglects which might occur, respecting the Quantity or the Quality of the Supplies so to be furnished, or respecting the Periods for the Delivery of the same: And whereas it is necessary, in those Cases in which the Food of any such prædial apprenticed Labourers as aforesaid may either wholly or in part be raised by themselves by the Cultivation of Ground to be set apart and allotted for that Purpose, that proper Regulations should be made and established as to the Extent of such Grounds, and as to the Distance at which such Grounds may be so allotted from the ordinary Place of Abode of such prædial apprenticed Labourers, and respecting the Deductions to be made from the Cultivation of such Grounds from the annual Time during which such prædial apprenticed Labourers are herein-before declared liable to labour: And whereas it may also be necessary, by such Regulations as aforesaid, to secure to the said prædial apprenticed Labourers the Enjoyment for their own Benefit of that Portion of their Time during which they are not hereby required to labour in the Service of their respective Employers, and for securing Exactness in the Computation of the Time during which such prædial apprenticed Labourers are hereby required to labour in the Service of such their respective Employers; and it is also necessary that Provision should be made for preventing the Imposition of Task-work on any such apprenticed Labourer without
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his or her free Consent to undertake the same; but it may be necessary by such Regulations in certain Cases to require and provide for the Acquiescence of the Minority of the prædial apprenticed Labourers attached to any Plantation or Estate in the Distribution and Apportionment amongst the whole Body of such Labourers of any Task-work which the Majority of such Body shall be willing and desirous collectively to undertake; and it is also necessary that Regulations should be made respecting any voluntary Contracts into which any apprenticed Labourers may enter with their respective Employers or with any other Person for hired Service for any future Period, and for limiting the greatest Period of Time to which such voluntary Contract may extend, and for enforcing the punctual and effectual Performance of such voluntary Contracts on the Part both of such apprenticed Labourers and of the Person or Persons engaging for their Employment and Hire; and it is also necessary that Regulations should be made for the Prevention or Punishment of any Cruelty, Injustice, or other Wrong or Injury which may be done to or inflicted upon any such apprenticed Labourers by the Persons entitled to their Services; and it is also necessary that proper Regulations should be made respecting the Manner and Form in which such Indentures of Apprenticeship as aforesaid shall be made on behalf of such Children as aforesaid, and respecting the registering and Preservation of all such Indentures: And whereas it is also necessary that Provision should be made for ensuring Promptitude and Dispatch, and for preventing all unnecessary Expence, in the Discharge by the Justices of the Peace holding such Special Commissions as aforesaid of the Jurisdiction and Authorities thereby committed to them, and for enabling such Justices to decide in a summary Way such Questions as may be brought before them in that Capacity, and for the Division of the said respective Colonies into Districts for the Purposes of such Jurisdiction, and for the frequent and punctual Visitation by such Justices of the Peace of the apprenticed Labourers within such their respective Districts; and it is also necessary that Regulations should be made for indemnifying and protecting such Justices of the Peace in the upright Execution and Discharge of their Duties: And whereas such Regulations as aforesaid could not without great Inconvenience be made except by the respective Governors, Councils, and Assemblies, or other local Legislatures of the said respective Colonies, or by His Majesty, with the Advice of His Privy Council, in reference to those Colonies to which the Legislative Authority of His Majesty in Council extends; be it therefore enacted and declared, That nothing in this Act contained extends or shall be construed to extend to prevent the Enactment by the respective Governors, Councils, and Assemblies, or by such other local Legislatures as aforesaid, or by His Majesty, with the Advice of His Privy Council, of any such Acts of General Assembly, or Ordinances, or Orders in Council as may be requisite for making and establishing such several Rules and Regulations as aforesaid, or any of them, or for carrying the same or any of them into full and complete Effect: Provided nevertheless, that it shall not be lawful for any such Governor, Council, and Assembly, or for any such local Legislature, or for His Majesty in Council, by any such Acts of Assembly, Ordinances, or Orders in Council as aforesaid, to

This Act not to prevent the Enactment, by Colonial Assemblies or by His Majesty in Council, of the Laws necessary for establishing such Regulations.

Provisions repugnant to

this Act contained in any such Colonial Law void.

make or establish any Enactment, Regulation, Provision, Rule, or Order which shall be in anywise repugnant or contradictory to this present Act or any Part thereof, but that every such Enactment, Regulation, Provision, Rule, or Order shall be and is hereby declared to be absolutely null and void and of no effect.

Such Colonial Acts may not authorize the whipping or other Punishment of the Labourer by the Employer's Authority.

XVII. Provided also, and be it further enacted, That it shall not be lawful for any such Governor, Council, and Assembly, or other Colonial Legislature, or for His Majesty in Council, by any such Act, Ordinance, or Order in Council, to authorize any Person or Persons entitled to the Services of any such apprenticed Labourer, or any other Person or Persons other than such Justices of the Peace holding such Special Commissions as aforesaid, to punish any such apprenticed Labourer for any Offence by him or her committed or alleged to have been committed by the whipping, beating, or Imprisonment of his or her Person, or by any other personal or other Correction or Punishment whatsoever, or by any Addition to the Hours of Labour herein-before limited; nor to authorize any Court, Judge, or Justice of the Peace to punish any such apprenticed Labourer, being a Female, for any Offence by her committed, by whipping or beating her Person; and that every Enactment, Regulation, Provision, Rule, or Order for any such Purpose in any such Act, Ordinance, or Order in Council contained shall be and is hereby declared to be absolutely null and void and of no effect: Provided always, that nothing in this Act contained doth or shall extend to exempt any apprenticed Labourer in any of the said Colonies from the Operation of any Law or Police Regulation which is or shall be in force therein for the Prevention or Punishment of any Offence, such Law or Police Regulation being in force against and applicable to all other Persons of free Condition.

Colonial Acts or Orders in Council not to authorize any Justices, except those having Special Commissions, to act in execution thereof.

XVIII. Provided also, and be it further enacted, That it shall not be lawful for any such Governor, Council, and Assembly, or for any such local Legislature, or for His Majesty in Council, by any such Acts of General Assembly, Ordinances, or Orders in Council as aforesaid, to authorize any Magistrate or Justice of the Peace, other than and except the Justices of the Peace holding such Special Commissions as aforesaid, to take cognizance of any Offence committed or alleged to have been committed by any such apprenticed Labourer, or by his or her Employer, in such their Relation to each other, or of the Breach, Violation, or Neglect of any of the Obligations owed by them to each other, or of any Question, Matter, or Thing incident to or arising out of the Relations subsisting between such apprenticed Labourers and the Persons respectively entitled to their Services; and every Enactment, Regulation, Provision, Rule, or Order in any such Acts, Ordinances, and Orders in Council to the contrary contained shall be and is hereby declared to be null and void and of no effect.

Justices having Special Commissions to exercise exclusive

XIX. And it is hereby further declared and enacted, That the several Justices of the Peace having Special Commissions as aforesaid shall, within the respective Colonies to which they shall be respectively appointed, have, exercise, and enjoy a sole and exclusive Jurisdiction

Jurisdiction over, and shall solely and exclusively take cognizance of, all such Offences or alleged Offences as last aforesaid, and of every such Breach, Violation, or Neglect of any of the aforesaid Obligations, and of every such Question, Matter, or Thing as aforesaid, any Law, Custom, or Usage in any of the said Colonies to the contrary in anywise notwithstanding: Provided nevertheless, that nothing herein contained shall extend or be construed to extend to abrogate or take away the Powers by Law vested in the Supreme Courts of Record, or the Superior Courts of Civil and Criminal Justice in any of the said respective Colonies.

Jurisdiction between apprenticed Labourers and their Employers. Jurisdiction of Supreme Courts preserved.

XX. Provided also, and be it further enacted, That no apprenticed Labourer shall, by any such Act of Assembly, Ordinance, or Order in Council as aforesaid, be declared or rendered liable for and in respect of any Offence by him or her committed, or for any Cause or upon any Ground or Pretext whatsoever, except as hereafter is mentioned, to any Prolongation of his or her Term of Apprenticeship, or to any new or additional Apprenticeship, or to any such additional Labour as shall impose upon any such apprenticed Labourer the Obligation of working in the Service or for the Benefit of the Person or Persons entitled to his or her Services for more than Fifteen extra Hours in the whole in any One Week, but every such Enactment, Regulation, Provision, Rule, or Order shall be and is hereby declared null and void and of no effect: Provided nevertheless, that any such Act of Assembly, Ordinance, or Order in Council as aforesaid may contain Provisions for compelling any apprenticed Labourer who shall, during his or her Apprenticeship, wilfully absent himself or herself from the Service of his or her Employer, either to serve his or her Employer after the Expiration of his or her Apprenticeship for so long a Time as he or she shall have so absented himself or herself from such Service, or to make Satisfaction to his or her Employer for the Loss sustained by such Absence, (except so far as he or she shall have made Satisfaction for such Absence, either out of such extra Hours as aforesaid, or otherwise,) but nevertheless so that such extra Service or Compensation shall not be compellable after the Expiration of Seven Years next after the Termination of the Apprenticeship of such Apprentice.

Apprenticed Labourers not to be subjected to a Prolongation or Renewal of their Apprenticeship, nor to more than 15 Hours extra Labour in any Week for their Employers Benefit.

XXI. Provided always, and be it hereby further enacted, That neither under the Provisions of this Act, nor under the Obligations imposed by this Act, or to be imposed by any Act of any General Assembly, Ordinance, or Order in Council, shall any apprenticed Labourer be compelled or compellable to labour on *Sundays*, except in Works of Necessity or in Domestic Services, or in the Protection of Property, or in tending of Cattle, nor shall any apprenticed Labourer be liable to be hindered or prevented from attending anywhere on *Sundays* for Religious Worship, at his or her free Will or Pleasure, but shall be at full Liberty so to do without any Let, Denial, or Interruption whatsoever.

Apprenticed Labourers not to be compelled to work on *Sundays*, nor prevented from attending Religious Worship on *Sundays*.

XXII. And whereas it may be expedient that Persons in the Condition of apprenticed Labourers should, during the Continuance of

Nothing herein to interfere with of any Colonial

Laws, by which apprenticed Labourers may be exempted from or disqualified for certain Military or Civil Services and Franchises.

of such their Apprenticeship, be exempted from the Performance of certain Civil and Military Services, and be disqualified from holding certain Civil and Military Offices, and from the Enjoyment of certain Political Franchises, within the said Colonies, and be exempted from being arrested or imprisoned for Debt; be it therefore enacted, That nothing in this Act contained extends or shall be construed to extend to interfere with or prevent the Enactment by the respective Governors, Councils, and Assemblies, or by such other local Legislature as aforesaid of any such Colonies, or by His Majesty in Council in reference to such of the said Colonies as are subject to the Legislative Authority of His Majesty in Council, of any Acts, Ordinances, or Orders in Council for exempting any such apprenticed Labourers as aforesaid, during the Continuance of such their Apprenticeship, from any such Civil or Military Service as aforesaid, or for disqualifying them or any of them during the Continuance of any such Apprenticeships from the Enjoyment or Discharge of any such Political Franchise as aforesaid, or for exempting them during the Continuance of such Apprenticeships from being arrested or imprisoned for Debt.

Acts passed by local Legislatures with similar but improved Enactments to this Act to supersede this Act on being confirmed by His Majesty in Council.

XXIII. And whereas it would be desirable that such of the Provisions of this Act as relate to the internal Concerns of the said respective Colonies should be enacted in such respective Colonies so far as may be possible by the Authority of the several local Legislatures of such Colonies respectively; be it therefore enacted, That in case the Governor, Council, and Assembly of any One or more of His Majesty's Colonies aforesaid shall, by any Act or Acts of General Assembly for that Purpose made, substitute for the several Enactments herein-before contained, or any of them, any Enactments accomplishing the several Objects in such herein-before contained Enactments respectively contemplated as fully and to the like Effect, but in a Manner and Form better adapted to the local Circumstances of any such Colonies or Colony, and in case His Majesty shall, by any Order or Orders to be by Him made, by the Advice of His Privy Council, confirm and allow any such Act or Acts of Assembly, and shall in and by any such Order or Orders in Council recite and set forth at length the several Provisions and Enactments of this present Act for which such other Enactments as aforesaid shall have been substituted by any such Act or Acts of General Assembly, then and in such Case so much and such Parts of this present Act as shall be so recited and set forth at length in any such Order or Orders of His Majesty in Council shall be suspended and cease to be of any Force or Effect in any such Colony from and after the Arrival and Proclamation therein of any such Order or Orders of His Majesty in Council, and shall continue to be so suspended so long as any such substituted Enactments shall continue in force and unrepealed, and no longer.

The Treasury may raise Loans, not exceeding 20 Millions.

XXIV. And whereas, towards compensating the Persons at present entitled to the Services of the Slaves to be manumitted and set free by virtue of this Act for the Loss of such Services, His Majesty's most dutiful and loyal Subjects the Commons of *Great Britain and Ireland* in Parliament assembled have resolved to give and grant to

His

His Majesty the Sum of Twenty Millions Pounds Sterling ; be it enacted, That the Lords Commissioners of His Majesty's Treasury of the United Kingdom of *Great Britain* and *Ireland* may raise such Sum or Sums of Money as shall be required from Time to Time under the Provisions of this Act, and may grant as the Consideration for such Sum or Sums of Money Redeemable Perpetual Annuities or Annuities for Terms of Years (which said Annuities respectively shall be transferable and payable at the Bank of *England*), upon such Terms and Conditions and under such Regulations as to the Time or Times of paying the said Sums of Money agreed to be raised as may be determined upon by the said Commissioners of the Treasury, not exceeding in the whole the Sum of Twenty Millions Pounds Sterling ; Provided nevertheless, that the Rate of Interest at which the said Sums of Money shall be from Time to Time raised shall be regulated and governed by the Price of the respective Redeemable Perpetual Annuities or Annuities for Terms of Years on the Day preceding (or on the nearest preceding Day if it shall so happen that there shall be no Price of such said Annuities respectively on the Day immediately preceding) the Day of giving Notice for raising such Sum or Sums of Money, and that the Rate of Interest to be allowed to the Contributors for such Sum or Sums of Money shall in no Case exceed Five Shillings *per Centum per Annum* above the current Rate of Interest produced by the Market Price of any such Redeemable Perpetual Annuities or Annuities for Terms of Years existing at the Time, and in which such Contracts shall be made.

XXV. Provided always, and be it further enacted, That before raising any such Sum or Sums by Redeemable Perpetual Annuities or Annuities for Terms of Years (unless the same shall be subscribed or contributed as herein-after mentioned by the Commissioners for the Reduction of the National Debt,) the said Commissioners of the Treasury are hereby required to give public Notice of the Intention to raise such Sum, or such Part thereof as shall not be subscribed or contributed as aforesaid, through the Governor and Deputy Governor of the Bank of *England*, of their Desire to receive Biddings for any such Annuities, which said Biddings and the Mode of raising such Annuities shall be conducted in such and the like Manner as has usually been practised with respect to the raising of Money by way of Annuities for the Service of the Public : Provided also, that no Contract or Agreement for raising any Sum or Sums by Annuities as aforesaid shall be entered into except during the sitting of Parliament, and when the same shall have been entered into all Proceedings, Tenders, and Contracts respecting the same shall be forthwith laid before Parliament.

Treasury to give Notice of their Intention to raise the same.

No Contract for raising same to be entered into but during sitting of Parliament.

XXVI. And be it further enacted, That whatever Redeemable Annuities or Annuities for any Term of Years which shall be created from Time to Time by the Sums of Money raised by virtue of this Act (which said Redeemable Annuities and Annuities for Terms of Years so created shall be of the like Description of some Redeemable Annuities or Annuities for Terms of Years existing at the Time of raising such Sum or Sums of Money,) shall be deemed and taken to be Redeemable Annuities or Annuities for Terms of

Annuities to be granted for such Loans to be of the same Description as some now existing.

Years of the like Description then existing, in which such Sum or Sums shall be agreed to be raised.

Annuities created by this Act to form Part of and be subject to same Regulations as like Annuities now existing.

XXVII. And be it further enacted, That all the several Redeemable Annuities and Annuities for Terms of Years which shall be created from Time to Time by virtue of this Act shall be deemed and taken to be and shall be added to and form Part of the like Redeemable Annuities or Annuities for Terms of Years in which such Sums of Money shall be raised, and shall be subject to all the Clauses, Conditions, Provisions, Directions, Regulations, and Periods of Payment as fully and effectually to all Intent and Purposes, except as altered and varied by virtue of this Act, as if the said Clauses, Conditions, Provisions, Directions, Regulations, and Periods of Payment were severally repeated and re-enacted in this Act.

Commissioners for Reduction of National Debt may subscribe towards raising Sum wanted for this Act.

9 G. 4. c.92.

10 G. 4. c.56.

XXVIII. And be it enacted, That the Commissioners for the Reduction of the National Debt may subscribe and contribute from Time to Time towards the raising any Sum or Sums of Money to be raised under the Provisions of this Act any Part of the Monies which shall be at any Time standing in their Names in the Books of the Governor and Company of the Bank of *England* under and by virtue of an Act passed in the Ninth Year of the Reign of King *George* the Fourth, intituled *An Act to consolidate and amend the Laws relating to Savings Banks*, and of another Act passed in the Tenth Year of the Reign of King *George* the Fourth, intituled *An Act to consolidate and amend the Laws relating to Friendly Societies*, and also to sell and dispose of the Bank Annuities and Exchequer Bills, or any Part thereof, which may be now standing or may hereafter stand in their Names in the Books of the said Bank in pursuance of the said respective Acts, and with the Proceeds thereof may subscribe and contribute such Monies from Time to Time, or any Part thereof, towards the raising the Sums of Money which may be required from Time to Time under the Provisions of this Act.

Monies raised to be paid to an Account at the Bank, called the West India Compensation Account.

XXIX. And be it enacted, That all Sums of Money which shall be raised from Time to Time by virtue of this Act shall be paid into the Bank of *England* to the Account of the Commissioners for the Reduction of the National Debt, under the Title of “The *West India* Compensation Account,” and the Cashiers of the Bank of *England* are hereby required to receive all such Sums of Money, and to place the same from Time to Time to the said Account.

The Cashiers of the Bank to give Receipts for Subscriptions, which may be assigned.

XXX. And be it enacted, That the Cashier or Cashiers of the Governor and Company of the Bank of *England*, who shall have received or shall receive any Part of any Contribution towards any Sum or Sums of Money raised or to be raised under the Provisions of this Act, shall give a Receipt or Receipts in Writing to every such Contributor for all such Sums; and that the said Receipts so to be given shall be assignable at any Time for and during such Period as shall and may be determined upon by the said Commissioners of the Treasury; and the said Receipts shall be in such Form and

Words

Words and under such Regulations as shall be approved by the said Commissioners of His Majesty's Treasury : Provided always, that in case any such Contributors who have already deposited with or shall hereafter pay to the said Cashier or Cashiers any Sum or Sums of Money, at the Time and in the Manner specified in the Proposals of the several Loans, in part of the Sum or Sums so by them respectively subscribed, or their respective Executors, Administrators, Successors, or Assigns, shall not advance and pay to the said Cashier or Cashiers the Residue of the Sum or Sums so subscribed at the Times and in the Manner stated in the Proposals, then and in every such Case so much of the respective Sum or Sums so subscribed as shall have been actually paid in part thereof to the said Cashier or Cashiers shall be forfeited for the Benefit of the Public, and all Right and Title to the said Redeemable Annuities or Annuities for Terms of Years in respect thereof shall be extinguished, any thing in this Act contained to the contrary thereof in anywise notwithstanding.

Subscriptions paid in part, and not completed, forfeited.

XXXI. And be it further enacted, That all the said Annuities, Interest, Dividends, and Charges for Management which shall become payable in respect of the said Sum of Twenty Millions, or any Part thereof, shall be charged and chargeable upon and the same is hereby charged upon and made payable out of the Consolidated Fund of the United Kingdom of *Great Britain* and *Ireland*.

Interest and Charges of the Twenty Millions charged upon Consolidated Fund.

XXXII. And be it further enacted, That so much Money shall from Time to Time be set apart and issued at the Receipt of the Exchequer in *England* out of the Consolidated Fund of the United Kingdom of *Great Britain* and *Ireland* to the said Cashier or Cashiers of the Governor and Company of the Bank of *England* as shall be sufficient to satisfy and pay the respective Annuities to be created in respect of the said Sum of Twenty Millions, or any Part thereof, together with the Charges attending the same.

Money for paying Annuities to be issued by Exchequer to Cashier of the Bank.

XXXIII. And for the Distribution of the said Compensation Fund, and the Apportionment thereof amongst the several Persons who may prefer Claims thereon, be it enacted, That it shall and may be lawful for His Majesty from Time to Time, by a Commission under the Great Seal of the United Kingdom, to constitute and appoint such Persons, not being less than Five, as to His Majesty shall seem meet, to be Commissioners of Arbitration for inquiring into and deciding upon the Claims to Compensation which may be preferred to them under this Act.

Commissioners to be appointed for distributing the Compensation provided by this Act.

XXXIV. And be it further enacted, That the said Commissioners to be appointed by virtue of this Act shall each of them, previously to his entering upon the Execution of such Commission, take an Oath before the Chancellor of the Exchequer or the Master of the Rolls for the Time being, which Oath they are hereby respectively authorized to administer, the Tenor thereof shall be as follows ; (that is to say,)

Commissioners to be sworn.

Form of
Oath.

‘ I *A.B.* do swear, That according to the best of my Judgment I
‘ will faithfully and impartially execute the several Powers and
‘ Trusts vested in me by an Act, intituled [*here set forth the Title of*
‘ *this Act*].’

Meetings of
the Commis-
sioners, and
Appoint-
ment of the
subordinate
Officers.

XXXV. And be it further enacted, That the said Commissioners may meet and sit from Time to Time in such Place or Places as they shall find it most convenient, with or without Adjournment, and with the Consent and Approbation of the Commissioners of the Treasury for the Time being, or any Three of them, in Writing; and shall and may employ a Secretary, and Clerks, Messengers, and Officers, and shall and may allow such Secretary, Clerks, Messengers, and Officers, with the like Consent and Approbation, reasonable Salaries, and shall and may employ a Solicitor, and allow to such Solicitor a reasonable Salary or Reward, and shall and may give and administer to such Solicitor or Solicitors, Secretary, Clerks, and Officers respectively an Oath for their faithful Demeanor in all Things relating to the due Performance of the Trusts reposed in them by the said Commissioners, and in all other Things touching the Premises; and the said Commissioners shall and may from Time to Time, at their Discretion, dismiss and discharge such Solicitor or Solicitors, Secretary, Clerks, Messengers, and other Officers, and appoint others in their Place; and the said Solicitor or Solicitors, Secretary, Clerks, and other Officers are hereby required faithfully to execute and perform the said Trusts in them severally and respectively reposed, without taking any thing for such Service other than such Salaries or Rewards as the said Commissioners, with such Approbation as aforesaid, shall direct or appoint in manner aforesaid.

Officers to
be sworn.

Any Three
Commis-
sioners to be
a Quorum.

XXXVI. And be it further enacted, That all Acts, Matters, and Things which the said Commissioners for the Execution of this Act are by this Act authorized so to do or execute may be done and executed by any Three or more of such Commissioners.

Remunera-
tion of the
Commission-
ers.

XXXVII. And be it further enacted, That no Remuneration shall be given for and in respect of the Execution of the said Commission to such of the said Commissioners as shall be Members of either House of Parliament, nor to any Number exceeding Three of the said Commissioners.

Appointment
of auxiliary
Commis-
sioners in the
Colonies.

XXXVIII. And whereas it may be necessary that Assistant Commissioners should be appointed to act in aid of and under the Directions of the Commissioners appointed by this Act in the said several Colonies; be it therefore enacted, That the Governor and the Attorney General or other chief Law Adviser of the Government of the said Colonies respectively shall, with any Two or more resident Inhabitants for each of such Colonies, to be nominated during Pleasure by the Governor thereof, be Commissioners for the Colony to which they respectively belong, to act in aid of the Commissioners under this Act in all such Cases and in relation to all Matters and Things which shall be referred to them by the said Commissioners, and for all such Purposes shall have and use and exercise all the Powers and Authorities of the said Commissioners; and such Assistant
Commissioners

Commissioners shall take an Oath, to be administered to the Governor by the Chief Justice or any Judge of the said Colonies respectively, and to the other Assistant Commissioners by the Governor thereof, that they will well and truly and impartially execute the Powers and Authorities given to them as such Assistant Commissioners in the several Matters and Things which shall be referred or submitted to them under the Provisions of this Act; and the said Assistant Commissioners shall, in all Matters which shall be referred to them by the Commissioners, transmit to the said Commissioners a full Statement of the several Matters which shall have been given in Evidence before them, and true Copies of such written Evidence as shall have been received by them, and thereupon the said Commissioners shall proceed to adjudicate upon the same, and upon such other Evidence, if any, as may be laid before them.

Colonial Commissioners to be sworn.

XXXIX. And be it further enacted, That the Lords Commissioners of the Treasury, or any Three or more of them, or the Lord High Treasurer for the Time being, shall be and they are hereby respectively authorized and required to issue and cause to be advanced all such Sums of Money to such Person or Persons, in such Manner, and in such Proportion as the said Commissioners appointed by this Act shall, by Writing under their Hands, from Time to Time require, out of the said Sum of Twenty Millions, which Sums so to be issued and advanced shall be employed for the Payment of Allowances, and in defraying all other necessary Charges and Expences, in or about the Execution of the said Commission, without other Account than that before the Lords Commissioners of His Majesty's Treasury; and which Money so to be issued shall not be subject to any Tax, Duty, Rate, or Assessment whatsoever imposed by Authority of Parliament; but that an Account of the said Charges and Expences shall be laid before both Houses of Parliament within Two Months after the Commencement of the then next ensuing Session of Parliament.

Issue of Money for Payment of the Expence of the Commission.

XL. And be it further enacted, That the said Commissioners shall be and are hereby authorized, by a Summons under their Hands, or under the Hands of any Three of them, to require the Attendance before them, by a Time to be in such Summons for that Purpose limited, of any Person or Persons competent, or whom such Commissioners may have Reason to believe to be competent, to give Evidence upon any Question depending before them; and if any Person upon whom any such Summons shall be served by the actual Delivery thereof to him or her, or by the leaving thereof at his or her usual Place of Abode, shall, without reasonable Cause to be allowed by such Commissioners, fail to appear before them at the Time and Place in such Summons for that Purpose mentioned, or so appearing shall refuse to be sworn or to make his or her solemn Affirmation, as the Case may be, or having been so sworn or having made such Affirmation shall not make answer to any such Questions as may by the said Commissioners be proposed to him or her touching any Matter or Thing depending before them, or shall refuse or fail to produce and exhibit to the said Commissioners any such Papers and Documents relating to any Question, Matter, or Thing depending before

Commissioners may compel the Attendance and Examination of Witnesses.

before such Commissioners as shall by them be called for or required, every such Person shall, for such his Default, Refusal, or Neglect as aforesaid, incur and become liable to all such Fines and Penalties, Prosecutions, Civil Suits, or Actions as any Person may by Law incur or become liable to for Default of Appearance or for refusing to be sworn or to give Evidence upon any Issue joined in any Action depending in His Majesty's Court of King's Bench; and the said Commissioners shall have all such and the same Powers, Jurisdiction, and Authority for imposing and causing to be levied and recovered any such Fines and Penalties as aforesaid as are by Law vested in any of the Judges of the said Court for imposing or causing to be levied and recovered any Fines or Penalties incurred by any Person failing to appear as a Witness or refusing to be sworn and to give Evidence in the Trial of any Action before any such Judges or Judge.

Commissioners authorized to take Examinations on

XLI. And be it further enacted, That the said Commissioners may examine upon Oath or Affirmation (which Oath or Affirmation they or any One or Two of them are and is hereby authorized to administer) all Persons who shall appear before them to be examined as Witnesses touching any Matters or Things which may be depending, or touching any Questions which may arise, in the Execution of the Powers vested in the said Commissioners by this Act, and may also receive any Affidavits or Depositions in Writing, upon Oath or Affirmation, touching such Matters or Things as aforesaid, which shall be made before any Justice of the Peace of any County or Shire, or any Magistrate of any Borough or Town Corporations, in *Great Britain* or *Ireland*, where or near which the Person making such Affidavit or Deposition shall reside, or before any Chief Justice or any other Judge of any of the Courts of Record or any Supreme Courts of Judicature in any of the said Colonies respectively, and certified and transmitted to the said Commissioners under the Hand and Seal of such Justice or Magistrate, Chief Justice or Judge (and which Oath or Affirmation every such Justice or Magistrate shall be and is hereby authorized and empowered to administer); provided that in every such Affidavit or Deposition there shall be expressed the Addition of the Party making such Affirmation or Deposition, and the particular Place of his or her Abode.

Penalties for swearing falsely before the Commissioners.

XLII. And be it further enacted, That if any Person or Persons upon Examination on Oath or Affirmation before the said Commissioners respectively, or if any Person or Persons making any such Affirmation or Deposition as before mentioned, shall wilfully and corruptly give false Evidence, or shall in such Affirmation, Affidavit, or Deposition wilfully or corruptly swear, affirm, or allege any Matter or Thing which shall be false or untrue, every such Person or Persons so offending, and being thereof duly convicted, shall be and is and are hereby declared to be subject and liable to the Pains and Penalties of Persons convicted of wilful and corrupt Perjury by any Law in force at the Time of such Perjury being committed.

Exemption from Postage of Letters on

XLIII. And be it further enacted, That the said Commissioners shall and may receive and send by the General Post, from and to Places

Places within the United Kingdom, all Letters and Packets relating solely and exclusively to the Execution of this Act free from the Duty of Postage, provided that such Letters and Packets as shall be sent to the said Commissioners be directed to the "Commissioners of Compensation," at their Office in *London*, and that all such Letters and Packets as shall be sent by the said Commissioners shall be in Covers, with the Words "Compensation Office, pursuant to Act of Parliament passed in the Third and Fourth Years of the Reign of His Majesty King *William* the Fourth," printed on the same, and be signed on the Outside thereof, under such Words, with the Name of such Person as the said Commissioners, with the Consent of the Lords Commissioners of the Treasury or any Three or more of them, shall authorize and appoint, in his own Handwriting (such Name to be from Time to Time transmitted to the Secretaries of the General Post Office in *London* and *Dublin*), and be sealed with the Seal of the said Commissioners, and under such other Regulations and Restrictions as the said Lords Commissioners, or any Three or more of them, shall think proper and direct; and the Person so to be authorized is hereby strictly forbidden so to subscribe or seal any Letter or Packet whatever except such only concerning which he shall receive the special Direction of his superior Officer, or which he shall himself know to relate solely and exclusively to the Execution of this Act; and if the Person so to be authorized, or any other Person, shall send, or cause or permit to be sent, under any such Cover, any Letter, Paper, or Writing, or any Enclosure, other than what shall relate to the Execution of this Act, every Person so offending shall forfeit and pay the Sum of One hundred Pounds, and be dismissed from his Office; one Moiety of the said Penalty to the Use of His Majesty, His Heirs and Successors, and the other Moiety to the Use of the Person who shall inform or sue for the same, to be sued for and recovered in any of His Majesty's Courts of Record at *Westminster* for Offences committed in *England*, and in any of His Majesty's Courts of Record in *Dublin* for Offences committed in *Ireland*, and before the Sheriff or Stewartry Court of the Shire or Stewartry within which the Party offending shall reside or the Offence shall be committed for Offences committed in *Scotland*.

the Business
of the Com-
mission.

XLIV. And be it further enacted, That no Part of the said Sum of Twenty Millions of Pounds Sterling shall be applied or shall be applicable to the Purposes aforesaid, for the Benefit of any Person now entitled to the Services of any Slave in any of the Colonies aforesaid, unless an Order shall have been first made by His Majesty, with the Advice of His Privy Council, declaring that adequate and satisfactory Provision hath been made by Law in such Colony for giving effect to this present Act by such further and supplementary Enactments as aforesaid, nor unless a Copy of such Order in Council, duly certified by One of the Clerks in Ordinary of His Majesty's Privy Council, shall by the Lord President of the Council have been transmitted to the Lords Commissioners of His Majesty's Treasury or to the Lord High Treasurer for the Time being for their or his Guidance or Information; and every such Order shall be published Three several Times in the *London Gazette*, and shall be laid before both Houses of Parliament within

No Part of the Compensation to be applicable to any Colony unless His Majesty by Order in Council shall have first declared that adequate Provision has been made by the Legislature thereof.

Such Orders to be published, and

Six

laid before
Parliament.

Six Weeks next after the Date thereof if Parliament shall be then in Session, and if not within Six Weeks from the then next ensuing Session of Parliament.

The Commis-
sioners to
apportion the
Compensa-
tion Fund
into Nineteen
Shares, being
One Share for
each Colony.

In making
such Appor-
tionment,
Regard to be
had to the
Number of
registered
Slaves, &c.

59G.3.c.120.

XLV. And be it further enacted, That the said Commissioners shall proceed to apportion the said Sum into Nineteen different Shares, which shall be respectively assigned to the several *British Colonies or Possessions* herein-after mentioned; (that is to say,) the *Bermuda Islands, the Bahama Islands, Jamaica, Honduras, the Virgin Islands, Antigua, Montserrat, Nevis, Saint Christopher's, Dominica, Barbadoes, Grenada, Saint Vincent's, Tobago, Saint Lucia, Trinidad, British Guiana, the Cape of Good Hope, and Mauritius*; and in making such Apportionment of the said Funds between the said several Colonies the said Commissioners shall and are hereby required to have regard to the Number of Slaves belonging to or settled in each of such Colonies as the same may appear and are stated according to the latest Returns made in the Office of the Registrar of Slaves in *England*, appointed in pursuance and under the Authority of an Act passed in the Fifty-ninth Year of His late Majesty King George the Third, intituled *An Act for establishing a Registry of Colonial Slaves in Great Britain, and for making further Provision with respect to the Removal of Slaves from British Colonies*; and the said Commissioners shall and they are hereby further required, in making such Apportionment as aforesaid, to have regard to the Prices for which, on an Average of Eight Years ending on the Thirty-first Day of *December* One thousand eight hundred and thirty, Slaves have been sold in each of the Colonies aforesaid respectively, excluding from Consideration any such Sales in which they shall have sufficient Reason to suppose that such Slaves were sold or purchased under any Reservation, or subject to any express or tacit Condition affecting the Price thereof; and the said Commissioners shall then proceed to ascertain, in reference to each Colony, what Amount of Sterling Money will represent the average Value of a Slave therein for the said Period of Eight Years; and the total Number of the Slaves in each Colony being multiplied into the Amount of Sterling Money so representing such average Value as aforesaid of a Slave therein, the Product of such Multiplication shall be ascertained for each such Colony separately; and the said Twenty Millions of Pounds Sterling shall then be assigned to and apportioned amongst the said several Colonies rateably and in proportion to the Product so ascertained for each respectively.

No Compensa-
tion to be
allowed for
Persons
illegally held
in Slavery.

XLVI. And be it further enacted, That in case it shall appear to the said Commissioners that any Persons in respect of whom Claims for Compensation under the Provisions of this Act shall have been made have been registered and held in Slavery in any of the said Colonies in this Act mentioned contrary to Law, then and in every such Case the said Commissioners shall deduct from the Sum to be appropriated as Compensation to the Proprietors in such Colony such Sums as shall correspond with the estimated Value and Number of the said Persons so illegally registered and held in Slavery; and all such Sum or Sums which may be deducted as herein-before provided shall be applied towards defraying the general Expences of the

the Commission to be hereby appointed : Provided always, that for the Purpose of ascertaining in what Cases such Deductions shall be made, every Question which shall arise in any such Colony respecting the servile Condition of any Persons therein registered as Slaves shall be inquired of and determined by the Commissioners to be appointed under this Act according to such Rules of legal Presumption and Evidence as are or shall be established by any Law in force or which shall be in force in any such Colony.

XLVII. And whereas it is necessary that Provision should be made for the Apportionment amongst the Proprietors of the Slaves to be manumitted by virtue of this Act, in each of the said Colonies respectively, of that Part of the said Compensation Fund which shall be so assigned as aforesaid to each of the respective Colonies : And whereas the necessary Rules for that Purpose cannot be properly or safely established until after full Inquiry shall have been made into the several Circumstances which ought to be taken into consideration in making such Apportionment ; be it therefore enacted, That it shall be the Duty of the said Commissioners, and they are hereby authorized and required, to institute a full and exact Inquiry into all the Circumstances connected with each of the said several Colonies which in the Judgment of the said Commissioners ought, in Justice and Equity, to regulate or affect the Apportionment within the same of that Part of the said general Compensation Fund which shall in manner aforesaid be assigned to each of the said Colonies respectively ; and especially such Commissioners shall have regard to the relative Value of prædial Slaves and of unattached Slaves in every such Colony ; and such Commissioners shall distinguish such Slaves, whether prædial or unattached, into as many distinct Classes as, regard being had to the Circumstances of each Colony, shall appear just ; and such Commissioners shall, with all practicable Precision, ascertain and fix the average Value of a Slave in each of the Classes into which the Slaves in any such Colony shall be so divided ; and the said Commissioners shall also proceed to inquire and consider of the Principles according to which the Compensation to be allotted in respect to any Slave or Body of Slaves ought, according to the Rules of Law and Equity, to be distributed amongst Persons who, as Owners or Creditors, Legatees or Annuitants, may have any joint or common Interest in any such Slave or Slaves, or may be entitled to or interested in such Slave or Slaves, either in Possession, Remainder, Reversion, or Expectancy ; and the said Commissioners shall also proceed to inquire and consider of the Principles upon which and the Manner in which Provision might be most effectually made for the Protection of any Interest in any such Compensation Money which may belong to or be vested in any married Women, Infants, Lunatics, or Persons of insane or unsound Mind, or Persons beyond the Seas, or labouring under any other legal or natural Disability or Incapacity, and according to what Rules, and in what Manner, and under what Authority Trustees should, when necessary, be appointed for the safe Custody, for the Benefit of any Person or Persons, of any such Compensation Fund or of any Part thereof, and for regulating the Duties of such Trustees, and providing them with a fair and reasonable Indemnity ;

Commissioners to institute Inquiries to ascertain the Facts to be taken into account in effecting the Apportionment of the Compensation Fund between the Proprietors in each Colony.

Having made the Inquiries, Commissioners to frame general Rules for the equitable Distribution of the Fund assigned to each Colony

Such Rules to be laid before His Majesty in Council.

Rules to be published in the *London Gazette*, with a Notice that Appeals will be received against their Establishment.

His Majesty in Council may hear such Appeals, and thereupon confirm or disallow any general Rule so appealed against.

and the said Commissioners shall also inquire and consider upon what Principles, according to the established Rules of Law and Equity in similar Cases, the Succession to such Funds should be regulated upon the Death of any Person entitled thereto who may die intestate; and the said Commissioners shall and they are also authorized and required to consider of any other Question which it may be necessary to investigate in order to establish just and equitable Rules for the Apportionment of such Compensation Money amongst the Persons seised of, or entitled to, or having any Mortgage, Charge, Incumbrance, Judgment, or Lien upon, or any Claim to, or Right or Interest in, any Slave or Slaves so to be manumitted as aforesaid, at the Time of such their Manumission; and having made all such Inquiries, and having taken all such Matters and Things as aforesaid into their Consideration, the said Commissioners shall and are hereby required to proceed to draw up and frame all such general Rules, regard being had to the Laws and Usages in force in each Colony respectively, as to them may seem best adapted in each Colony respectively for securing the just and equitable Distribution of the said Funds amongst or for the Benefit of such several Persons as aforesaid, and for the Protection of such Funds, and for the Appointment and Indemnification of such Trustees as aforesaid; and such general Rules when so framed, and when agreed upon by the said Commissioners, shall by them be subscribed with their respective Hands and Seals, and transmitted to the Lord President of His Majesty's Council, to be by him laid before His Majesty in Council; and so from Time to Time as often as any further general Rules should be so framed and agreed to for the Purposes aforesaid or any of them.

XLVIII. And be it further enacted, That the general Rules to be transmitted as aforesaid to the said Lord President shall be forthwith published in the *London Gazette* on Three several Occasions at least, together with a Notice that all Persons interested in or affected by any such general Rules may, by a Time to be in such Notice limited, appeal against any such Rules to His Majesty in Council; and it shall be lawful for the Lords and others of His Majesty's Privy Council, or for any Three or more of them, by any further Notice or Notices to be for that Purpose published in the *London Gazette*, to enlarge, as to them may seem meet, the Time for receiving any such Appeals.

XLIX. And be it further enacted, That if within the Time so to be limited for receiving such Appeals any Person or Persons shall prefer any Petition of Appeal to His Majesty in Council against any such general Rule so published as aforesaid in the *London Gazette*, it shall be lawful for His Majesty in Council, or for any Committee of Privy Council, to hear such Appeal, and to cause Notice thereof to be served upon the said Commissioners, who shall thereupon undertake the Defence of such Appeal; and upon hearing any such Appeal it shall be lawful for His Majesty in Council to confirm and annul or to rescind and disallow any such General Rule as aforesaid, or thereupon to alter, amend, or vary any such Rule in such Manner as to His Majesty may seem just, or to remit the same to the said Commissioners for further Consideration and Revision.

L. And be it further enacted, That at the Expiration of the Time limited for receiving such Appeals as aforesaid it shall be lawful for His Majesty in Council to confirm and allow, or to rescind and disallow, in the whole or in part, or to amend, alter, or vary, any such general Rule or Rules, though not so appealed against, as to His Majesty may seem just, or to remit such Rules to the said Commissioners for further Consideration and Revision.

In Absence of Appeal, His Majesty in Council may confirm, rescind, or amend such Rules.

LI. And be it further enacted, That when and so often as any such general Rule or Rules as aforesaid shall by His Majesty in Council have been confirmed and allowed, an Order shall be made by His Majesty in Council, reciting at length any such Rule or Rules, with any Alterations or Amendments which may have been therein made as aforesaid; and a Copy of every such Order in Council shall be duly certified by the Lord President of His Majesty's Council for the Time being to the Lord High Chancellor or Keeper of the Great Seal, or to the Master of the Rolls, for the Time being, and shall be duly inrolled among the Records of the High Court of Chancery, and shall there remain and be of Record.

Rules when confirmed by His Majesty shall be recited in the confirmatory Order in Council, and inrolled in Chancery.

LII. And be it further enacted, That it shall be lawful, by any Rules so to be framed, published, confirmed, allowed, and inrolled as aforesaid, to revoke, amend, alter, and again renew, as Occasion may require, and as may be thought just, any former or preceding Rule or Rules.

Rules so inrolled may be revoked or amended.

LIII. And be it further enacted, That every such general Rule as aforesaid, when so inrolled as aforesaid, shall be of the same Validity, Force, Virtue, and Effect as if the same had been made and enacted by His Majesty, by and with the Advice and Consent of Parliament: Provided nevertheless, that no such Rule shall be in anywise repugnant to or at variance with this Act or any Part thereof, or with the Laws and Usages in force in the several Colonies respectively to which such Rules may relate, so far as any such Laws or Usages may not be repugnant to or at variance with the Provisions of this Act.

Rules when confirmed and inrolled shall be of the same Validity as if enacted by Parliament.

LIV. And be it further enacted, That the said general Rules, when so framed, confirmed, allowed, and inrolled as aforesaid, shall be observed and followed by the said Commissioners, and shall be binding upon them in the further Execution of the said Commission, and in the Exercise of the Powers and Authorities hereby committed to them, and shall in all Cases be taken, observed, and followed as the Rules for the Decision of and Adjudication upon all Claims which may be preferred to them by any Person or Persons having or claiming to have any Interest in the said Compensation Fund or in any Part thereof.

Rules so inrolled shall be observed by the Commissioners in making their Awards.

LV. And be it further enacted, That any Person having or claiming to have had any Right, Title, or Interest in or to, or any Mortgage, Judgment, Charge, Incumbrance, or other Lien upon, any Slave or Slaves so to be manumitted as aforesaid, at the Time of such their Manumission, shall and may prefer such Claims before the

Persons interested in any Slaves manumitted by this Act may prefer Claims before

the Commissioners, who are to make Rules for the Conduct of all Proceedings under the Commission.

the said Commissioners ; and for ensuring Method, Regularity, and Dispatch in the Mode of preferring and of proceeding upon such Claims, the said Commissioners shall and are hereby authorized by general Rules, to be framed and published, confirmed, allowed, and inrolled as aforesaid, to prescribe the Form and Manner of Proceeding to be observed by any Claimant or Claimants preferring any such Claims, and to authorize the Assistant Commissioners so to be appointed in the said several Colonies to receive and report upon the same or any of them in such Manner and Form and under such Regulations as to the Commissioners so to be appointed by His Majesty as aforesaid shall seem meet, and to prescribe the Manner, the Time or Times, the Place or Places, and the Form or Forms in which Notices of such Claims shall be published for general Information, or especially communicated to or served upon any Person or Persons interested therein or affected thereby, and to prescribe the Form and Manner of Proceeding to be observed upon the Prosecution of such Claims, or in making any Opposition to the same, and to make all such Regulations as to them may seem best adapted for promoting Method, Economy, and Dispatch in the Investigation of such Claims, and respecting the Evidence to be taken and admitted for or against the same, and respecting the Manner and Form of adjudicating thereupon, and otherwise however respecting the Method, Form, and Manner of Proceeding to be observed either by them the said Assistant Commissioners, or by the Parties to any Proceedings before them, their Agents or Witnesses, and which Rules shall from Time to Time be liable to be amended, altered, varied, or renewed as Occasion may require, in such Manner as is herein-before directed.

Commissioners to adjudicate on all Claims preferred to them.

Appeal may be made against Adjudication.

His Majesty in Council may make Rules for the Regulation of such Appeals.

In adverse Claims, any Claimant interested in the Adjudication may undertake its Defence.

LVI. And be it further enacted, That the said Commissioners shall proceed, in the Manner to be prescribed by any such general Rules as last aforesaid, to inquire into and adjudicate upon any such Claims as may be so preferred to them, and shall upon each such Claim make their Adjudication and Award in such Manner and Form as shall be prescribed by any such last-mentioned general Rules ; and if any Person interested in or affected by any such Adjudication or Award shall be dissatisfied therewith, it shall be lawful for such Person to appeal therefrom to His Majesty in Council, and Notice of any such Appeal shall be served upon the said Commissioners, who shall thereupon undertake the Defence thereof ; and it shall be competent to His Majesty in Council to make and establish all such Rules and Regulations as to His Majesty shall seem meet respecting the Time and Manner of preferring and proceeding upon such Appeals, and respecting the Course to be observed in defending the same, which Rules shall be so framed as to promote, as far as may be consistent with Justice, all practicable Economy and Dispatch in the proceeding upon the Decision thereof ; and in Cases in which any Two or more Persons shall have preferred before the said Commissioners adverse or opposing Claims, and in which any or either of such Persons shall be interested to sustain the Adjudications or Award of such Commissioners thereupon, then and in every such Case it shall be lawful for any Person or Persons so interested, to undertake the Defence of any such Appeal in lieu and instead of the said Commissioners.

LVII. And

LVII. And be it further enacted, That it shall be lawful for His Majesty in Council, upon hearing any such Appeal as aforesaid, either to confirm and allow or to reverse or to amend or alter any such Adjudication or Award as to His Majesty in Council shall seem fit, or to remit any such Adjudication and Award to the said Commissioners for further Consideration and Revision, or for the Admission of further Evidence ; but it shall not be lawful for His Majesty in Council, upon the hearing of any such Appeal, to admit any new Evidence which was not admitted by or tendered to the said Commissioners before the making of such their Adjudication and Award.

His Majesty in Council may confirm or disallow, or alter or remit Adjudication appealed against.

LVIII. And be it further enacted, That the several Adjudications and Awards of the said Commissioners, unless duly appealed from within the respective Times to be limited by His Majesty in Council for that Purpose, shall be final and conclusive and binding upon all Persons interested therein or affected thereby; and that the Decisions of His Majesty in Council upon any such Appeal shall in like Manner be final, binding, and conclusive.

Failing any Appeal, the Award of the Commissioners final.

LIX. And be it further enacted, That the Lord High Treasurer, or the Commissioners of His Majesty's Treasury, or any Three or more of them, for the Time being, may order and direct to be issued and paid out of the said Sum of Twenty Millions of Pounds Sterling any Sum or Sums of Money for the Payment of Salaries to Commissioners, Officers, Clerks, and other Persons acting in relation to such Compensation in the Execution of this Act, and for discharging such incidental Expences as shall necessarily attend the same, in such Manner as the Lord High Treasurer, or Commissioners of the Treasury, or any Three or more of them, shall from Time to Time think fit and reasonable; and an Account of such Expence shall be annually laid before Parliament.

Treasury may order Issues of Money for Payment of Salaries, &c.

LX. And be it enacted, That a Certificate containing a List of the Names and Designation of the several Persons in whose Favour any Sum or Sums of Money shall be awarded from Time to Time under the Provisions of this Act by the Commissioners, as hereinbefore mentioned, shall be signed by Three or more of the said Commissioners, who shall forthwith transmit the same to His Majesty's Principal Secretary of State then having Charge of the Affairs of the said Colonies, for his Approbation and Signature, who shall, when he shall have signed the same, transmit it to the Commissioners of His Majesty's Treasury ; and the said Commissioners of the Treasury, or any Three of such Commissioners, shall thereupon, by Warrant under their Hands, authorize the Commissioners for the Reduction of the National Debt to pay the said Sums, out of the Monies standing upon their Account in the Books of the said Bank under the Title of "*The West India Compensation Account*," to the Persons named in such Certificate ; and the said Commissioners for the Reduction of the National Debt, or the Comptroller General or Assistant Comptroller General acting under the said Commissioners, are hereby required to pay all such Sums of Money to the Persons named therein under such Forms and Regulations as the said Commissioners for the Reduction of the National Debt shall think fit to adopt for that Purpose.

Manner in which Sums awarded by Commissioners are to be paid.

LXI. And whereas in some of the Colonies aforesaid a certain Statute, made in the Thirteenth and Fourteenth Years of King Charles the Second, intituled *An Act for preventing the Mischiefs and Dangers that may arise by certain Persons called Quakers and others refusing to take lawful Oaths*; and a certain other Statute made in the Seventeenth Year of King Charles the Second, intituled *An Act for restraining Nonconformists from inhabiting in Corporations*; and a certain other Statute, made in the Twenty-second Year of King Charles the Second, intituled *An Act to prevent and suppress seditious Conventicles*; and a certain other Statute, made in the First and Second Year of King William and Queen Mary, intituled *An Act for exempting Their Majesties Protestant Subjects dissenting from the Church of England from the Penalties of certain Laws*; and a certain other Statute, made in the Tenth Year of Queen Anne, intituled *An Act for preserving the Protestant Religion by better securing the Church of England as by Law established; and for confirming the Toleration granted to Protestant Dissenters by an Act intituled 'An Act for exempting Their Majesties Protestant Subjects dissenting from the Church of England from the Penalties of certain Laws,' and for supplying the Defects thereof; and for the further securing the Protestant Succession by requiring the Practicers of the Law in North Briton to take the Oaths and subscribe the Declaration therein mentioned*; or some or one of those Statutes, or some Parts thereof or of some of them, have and hath been adopted, and are or is in force; be it further enacted, That in such of the Colonies aforesaid in which the said several Statutes or any of them, or any Parts thereof or any of them, have or hath been adopted and are or is in force, a certain Statute made in the Fifty-second Year of His late Majesty King George the Third, intituled *An Act to repeal certain Acts and amend other Acts relating to Religious Worship and Assemblies, and Persons teaching or preaching therein*, shall be and is hereby declared to be in force as fully and effectually as if such Colonies had been expressly named and enumerated for that Purpose in such last-recited Statute: Provided nevertheless, that in the said several Colonies to which the said Act of His late Majesty King George the Third is so extended and declared applicable as aforesaid any Two or more Justices of the Peace holding any such Special Commission as aforesaid shall have, exercise, and enjoy all and every the Jurisdiction, Powers, and Authorities whatsoever which by force and virtue of the said Act are within the Realm of *England* had, exercised, and enjoyed by the several Justices of the Peace, and by the General and Quarter Sessions therein mentioned.

Special Justices to have same Power in Colonies as Justices under

52G.3.c.155.

His Majesty in Council may make all necessary Laws for giving effect to this Act in the Settlement of Honduras.

LXII. And whereas in the Settlements in the Occupation of His Majesty and of His Majesty's Subjects in *Honduras*, no Law is in force for the Registration of Slaves, and Doubts might be entertained respecting the Authority of His Majesty, with the Advice of His Privy Council, to make Laws binding on His Majesty's Subjects therein; be it therefore declared and enacted, That it is and shall be lawful for His Majesty, by any Order or Orders to be by Him for that Purpose made with the Advice of His Privy Council, to establish a Registry of Slaves for the Purposes of this Act within the said Settlement; and all Laws made by His Majesty for the Government of His said Subjects shall, for the Purposes of this Act, be as valid and

effectual

effectual as any Laws made by His Majesty in Council for the Government of any Colonies subject to the Legislative Authority of His Majesty in Council are or can be.

LXIII. And be it further enacted, That within the Meaning and for the Purposes of this Act every Person who for the Time being shall be in the lawful Administration of the Government of any of the said Colonies shall be taken to be the Governor thereof.

The Word Governor defined.

LXIV. And be it further enacted, That nothing in this Act contained doth or shall extend to any of the Territories in the Possession of the *East India* Company, or to the Island of *Ceylon*, or to the Island of *Saint Helena*.

Act not to extend to East Indies, &c.

LXV. And be it further enacted, That in the Colonies of the *Cape of Good Hope* and *Mauritius* the several Parts of this Act shall take effect and come into operation, or shall cease to operate and to be in force, as the Case may be, at Periods more remote than the respective Periods herein-before for such Purposes limited by the following Intervals of Time; *videlicet*, by Four Calendar Months in the Colony of the *Cape of Good Hope*, and by Six Calendar Months in the Colony of the *Mauritius*.

When Act to come into operation at the Cape of Good Hope and Mauritius.

LXVI. And be it further enacted and declared, That within the Meaning and for the Purposes of this Act all Islands and Territories dependent upon any of the Colonies aforesaid, and constituting Parts of the same Colonial Government, shall respectively be taken to be Parts of such respective Colonies.

Islands dependent upon Colonies deemed Part of such.

LONDON: Printed by GEORGE EYRE and ANDREW SPOTTISWOODE,
Printers to the King's most Excellent Majesty. 1833.